

25LBCV03225 25LBCV03225

County: los-angeles

Division: Civil Law and Motion

Department: S27

Hearing date: 2026-09-01

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Case Number: 25LBCV03225 Hearing Date: September 1, 2026 Dept: S27

Plaintiff's attorney, Mani Arabi of

Strategic Legal Partners, seeks to be relieved as counsel, declaring all attempts to communicate with Plaintiff have been unsuccessful.

Counsel declares he confirmed

Plaintiff's address by certified mail, return receipt requested. Counsel must lodge a copy of the return receipt with the Court prior to the hearing or bring a copy to the hearing. Counsel filed proof of service of the moving papers on Defense Counsel, but not on Plaintiff. If Counsel lodges a copy of the signed return receipt prior to trial and files proof of service of the moving papers on Plaintiff, the motion will be granted, with relief effective upon filing proof of service of the final order on Plaintiff.

If Counsel does not do so, the motion will be denied without prejudice.

Defendant filed a limited

opposition to the motion, pursuant to which it seeks to have the Court set an OSC re: dismissal for failure to prosecute.

CCP §583.420(a)(1) permits the Court to dismiss an action if the summons and complaint are not served within two years after the action is filed. §583.410 also permits the Court to dismiss an action if the case is not brought to trial within two years after filing. There are various other statutes that permit dismissal of an action, none of which apply here. Pursuant to *Lyons v. Wickhorst* (1986) 42 Cal.3d 911, 915-917, the Court's powers to dismiss absent a statutory basis are extremely limited, and can only be applied in sham actions or where a delay of less than the statutory period has been prejudicial to the other party.

The Court sets an OSC re: dismissal

for failure to prosecute for two years after the action was filed, on Monday, 11/22/27 at 8:30 a.m. in Department S27.

The Court notes that the trial date remains on calendar on 1/04/27, and CCP §581(b)(5) permits the Court to dismiss the action if Plaintiff fails to appear for trial.

Counsel is ordered to give notice.